ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	18th Commission Meeting
DATE:	23 March, 2021
TIME:	02:00 PM
VENUE:	Hearing room

#	AGENDA	DECISIONS
1	UNCAC reservation – LD & PPS *Decision rendered on 25 December 2018 pertaining to the objection made by Finland and Netherlands related to Bhutan's late reservation on paragraph 2 of Article 66 of the UNCAC*	The LD apprised the Commission on the progress made thus far in negotiating with Finland and Netherlands to withdraw their objections. Despite several attempts made by the MoFA, the efforts could not be materialized. In this regard, the MoFA is consulting with key stakeholders on submitting a note to the Cabinet on possible way forward. To this, amongst the options explored 1) to negotiate with above countries, 2) denounce accession & re-accede with reservation, and 3) continue accession without reservation, the LD apprised that option 2 is not advisable considering the advancement made thus far in reviewing Bhutan's compliance to UNCAC, which is already in the second Review Cycle. Further, Bhutan has completed review of Thailand and currently is in the process of reviewing Japan and Latvia. Besides the cost incurred in the above processes, the consequences of renunciation is also not clear at this stage. The same matter was also raised by the Foreign Secretary during the recent 10th National Coordination Committee meeting held on 3 March 2021 at the RMA, wherein the Chairperson informed about the adverse impacts of a withdrawal on the substantive progress made so far by Bhutan as a member State. In view of the above, the Commission decided to follow the option 3, to continue accession without reservation. The Commission directed PPS/LD to meet the MoFA team as requested by them.
2	Present on the conduct of TI – ACA Strengthening Initiative Assessment – PPS	The PPS presented the Commission on the scope, timeline and budget for conducting ACA Strengthening Initiative Assessment administered by the Transparency International (TI). Considering the restrictions posed by the current pandemic, the assessment is tentatively scheduled to complete by November 2021 with an estimated cost of Euro 20,900.00. To this, a local consultant shall be hired by the TI to support local data collection and consultation. *Attached herewith the assessment methodology, budget estimate & tentative work plan.* The assessment being one of the KPIs in the 12th FYP and given its purport to gauge the performance and standing of the ACC, the

		Commission endorsed the proposal to conduct the assessment as per the proposed work plan. However, the Commission cautioned the PPS to ensure proper dissemination & reporting on the findings of the assessment to avoid unnecessary public attention.
3	Formation of project teams under the Justice Sector Programme – PPS	Besides apprising on the three-day workshop from 15 – 17 March 2021 at Paro among the members of Programme Management Unit under Justice Sector Programme, the PPS apprised the Commission on the need to nominate relevant officials from the Department/Divisions concerned to provide necessary inputs to the respective on-going projects. To this, the Commission decided to have one representative each as follows: 1. RD, DoPE to Legal Needs Survey led by GNHCS; 2. LD to e-Litigation led by RCoJ; 3. ICTS to Data Integration led by OAG; 4. Branch V, DoI to Forensic Laboratory led by RBP; and 5. PPS to Child Justice led by RCoJ.
4	Proposal on 2nd QSM for the FY 2020 – 2021 – PPS	The PPS presented the draft agenda for the 2nd QSM for the FY 2020 – 2021 to the Commission. *Attached herewith is the draft agenda.* In keeping with the nationwide vaccination campaign from 27 March 2021, the Commission decided to conduct the meeting on 6 April 2021. Further, the Commission directed the PPS to revise the agenda to ensure the following: • Setting of priorities must have coherence in goals/targets at various level, wherein every individual clearly understand one's effort in contributing to the overarching institutional goal of fighting corruption. • The strategic milestones and commitments shared during the first QSM & Foundation Day should be captured while setting priorities. • Include experience sharing sessions on bitcoin, management of public perception, values, among others.
	Any other:	In line with the notification of the National Assembly regarding submission of agenda for the upcoming Parliamentary Session, the Commission directed LD to prepare for submission of an agenda on ACAB (Amendment) 2020 immediately.

Commissioner **Commissioner** **Chairperson**